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Title : Witch-Hunting in Chhattisgarh: Debates and the Making of the Chhattisgarh Tonahi Pratadna Nivaran Adhiniyam, 2005

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Witch-Hunting in Chhattisgarh:
Debates and the Making of the Chhattisgarh Tonahi Pratadna Nivaran Adhiniyam, 2005

Glossary :

Tonahi, tonha, ojha, jharphunk, baiga, andhvisvas, dāyan or dāin, guniya, tantrik, jadu-tona, ASNS.

Abstract

This paper examines the making of the Chhattisgarh Tonahi Pratadna Nivaran Adhiniyam, 2005 in the context of persistent witch-hunting practices in Chhattisgarh. It approaches witch-hunting not merely as superstition but as a form of gendered violence shaped by local power relations, caste dynamics, and community structures. Focusing on the processes leading to the enactment of the law, the study analyses legislative debates, media interventions, and the role of civil society in bringing the issue into the domain of state action. By closely reading assembly debates and selected case studies, the paper explores how the need for a specific law was articulated and contested. It highlights key concerns raised during debates, including fears of misuse, questions of punishment, and the limits of existing legal provisions. At the same time, it shows how women's voices remain largely mediated within these discussions. The paper argues that while the Act represents an important legal intervention, it does not fully resolve the structural conditions that sustain witch-hunting, pointing to the limits of law in addressing deeply embedded social violence.

Introduction

Women have experienced multiple forms of subordination throughout their lives across various cultures and civilisations, often shaped by deeply entrenched patriarchal structures. In the Indian context, this has taken diverse and evolving forms, including practices such as sati, child marriage, infanticide**,** domestic violence, and honour killings. These forms of violence, though different in their expression across time, reveal a broader pattern of gender inequality and control. Within this wider landscape, witch hunting emerges as a particularly violent yet relatively understudied phenomenon.[1] For British colonial rulers, witchcraft was seen as a key sign of primitiveness. It was seen not merely as a belief system, but as evidence of the backwardness of indigenous society. For example, Major P. Vans Agnew, who served as Superintendent of Affairs in Chhattisgarh between 1818 and 1826, commented:

> "The manners and customs of the inhabitants of Chutteesgurh do not appear materially to differ from those of similar castes in other parts of India. … The only points which attract particular attention are … the universal belief in witch-craft by all inhabitants of the country."
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> [Agnew 1820/1995:130]

Such observations reflect how colonial officials identified the widespread belief in witchcraft in Chhattisgarh as a defining feature of the region, reinforcing colonial perceptions of indigenous society as irrational and inferior. While such observations were shaped by colonial biases, they also indicate that beliefs in witchcraft were socially significant and deeply embedded.

Despite its long historical presence, witch-hunting did not remain confined to the colonial past. In postcolonial India, and particularly in regions like Chhattisgarh, the practice has persisted in disturbing ways,

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[1] Kumari, Shamsher Alam Meena. "Witchcraft and Witch-Hunting : Perceptions, Interventions and Resolution." *Psycology and education Journal,* vol. 58, no. 1, Jan.2021. p. 3149.

often resulting in the social ostracisation, physical violence, and even murder of women. Recognising the severity of the issue, the state enacted the Chhattisgarh Tonahi Pratadna Nivaran Act, 2005 (CG Act No. 17 of 2005), also known as, Chhattisgarh Witch Atrocities Prevention Act, 2005 as a legal measure to curb the branding of women as "tonahi" (witches) and to punish those involved in such acts of violence.

However, the formulation of this law and the discussions surrounding it in the legislative assembly reveal particular ways in which the problem was understood by the state. The debates in the assembly often framed witch-hunting primarily as a product of superstition, lack of education, and social backwardness. While such explanations acknowledge the prevalence of belief in witchcraft, they risk reducing a complex social phenomenon to a question of ignorance alone. At the same time, media representations from the period, particularly newspaper reports, tended to portray incidents of witch-hunting in sensational terms, emphasising brutality while often neglecting the underlying social dynamics.

This paper, therefore, examines witch-hunting in Chhattisgarh by analysing the provisions of the 2005 Act, the legislative debates surrounding its enactment, contemporary newspaper coverage, and selected case studies. It argues that while the law represents an important step toward addressing the issue, both legislative discourse and media narratives tend to simplify witch-hunting as a problem of superstition.

Historiography

When we begin to read the literature on witchcraft, what stands out is not a lack of writing, but a kind of distance. There is no shortage of studies as scholars have approached this subject from many angles: some focus on belief, some on violence, and others on law. However, these discussions often move alongside each other without fully connecting. As a result, they fail to capture the lived realities of places like Chhattisgarh, where these elements are deeply entangled and what we get are partial explanations. It is within this gap this study places itself.

A good place to begin is with broader Feminist studies on women's lives in rural India. Feminist scholars have, for decades, carefully documented how women- especially widows, elderly women, or those without strong family backing, face everyday forms of violence and exclusion. But interestingly, many of these studies do not dwell much on witchcraft accusations. The suffering is visible, but the language through which it is expressed, being called a "tonahi" or witch, often remains in the background. This creates a noticeable gap. We understand that women are vulnerable, but we are not always shown how that vulnerability is transformed into public accusation, humiliation, and sometimes even murder. This is where my study takes a slightly different path. Instead of treating witchcraft as one among many forms of violence, I see it as a specific social act, a label that transforms suspicion into legitimacy. Once a woman is named a witch, it does not merely insult her; it makes violence against her appear justified.

An important body of work comes from anthropological monographs produced by institutions like the Tribal Research Institute, Madhya Pradesh. Studies on communities such as the Bhatra, Baiga, Gond, Munda, and Oraon provide detailed accounts of social life, belief systems, and customary practices. These works frequently mention the presence of *tonahis, ojhas*, and *jhār-phunk*, indicating that what is often termed "superstition" has long been embedded in everyday life. However, what is striking about these monographs is not only what they include, but also what they leave out. Witchcraft appears in these studies largely as a cultural belief or practice, rather than as a form of violence or social conflict. There is little discussion of how accusations operate within relations of power, or how they disproportionately affect women. My study builds on the descriptive richness of these monographs but moves beyond them by asking different

questions: not only how belief exists, but how it is used, who it targets, and how it becomes a matter of legal and political concern in contemporary Chhattisgarh.

If we move from regional monographs to more formal academic studies of witchcraft, the focus shifts from description to explanation. Scholars like Mary Douglas in Witchcraft Confessions and Accusations argue that witchcraft is not irrational, but a way in which societies explain misfortune. Similarly, Wolfgang Behringer in Witches and Witch-Hunts shows that witch-hunts often intensify during moments of crisis, when uncertainty pushes communities to look for someone to blame. This point can be illustrated with reference to 'cholera witches'. These works move beyond older colonial interpretations that dismissed witchcraft as mere superstition.

However, when these arguments are applied to the context of Chhattisgarh, certain limitations become visible. First, not all witchcraft accusations can be linked directly to moments of crisis, as Behringer's framework would suggest. While crisis may intensify accusations, it does not fully explain their persistence in relatively stable conditions. More importantly, both Douglas and Behringer tend to treat witchcraft beliefs as relatively stable systems of meaning. In contrast, evidence from Chhattisgarh suggests that the content of witchcraft beliefs is historically changing. For instance, in the nineteenth century, witchcraft accusations were often associated with epidemics like cholera. For instance, in an 1869 case, seven women suspected of being "cholera witches" were treated so brutally that one woman died on the spot.[2] Over time, however, this specific linkage has disappeared. Today, cholera is understood in biomedical terms, as caused by contaminated water, and knowledge of treatments such as oral rehydration is common. Yet, despite this shift in understanding, witchcraft accusations have not disappeared; rather, they have taken on new forms and associations.

Another important way to understand witchcraft accusations is through the idea of envy, as discussed by George M. Foster (1972) in his article *"The Anatomy of Envy: A Study in Symbolic Behavior."* Foster argues that witch-hunting is often triggered not only by crises such as disease, drought, or crop failure, but also by situations where something desirable is at stake. This could be material, like wealth, or deeply personal, such as the birth of children. In this sense, witchcraft accusations emerge not only from fear, but also from envy and social comparison.[3] I find this perspective convincing, and it aligns closely with what I am trying to explore. In the context of Chhattisgarh, envy does not operate in isolation but overlaps with other factors such as property disputes and gendered vulnerability, making accusations part of a broader social dynamic where emotions like jealousy and insecurity take concrete form through accusation.

Helen Macdonald's *Witchcraft Accusations from Central India: The Fragmented Urn* is an important work for understanding witch-hunting in Chhattisgarh. Rather than treating witchcraft accusations as remnants of superstition, Macdonald situates them within a complex web of social relations, gendered power structures, and interactions with institutions such as the police, media, and the state. By using "fragments" of ethnographic narratives, she rejects linear storytelling and instead reconstructs witchcraft accusations as layered, multi-vocal events, reflecting how they unfold through different voices and experiences.

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[2] Macdonald, Helen. "Witchcraft Accusations from Central India : The Fragmented Urn." *Routledge*, 2021, p. 225.

[3] Foster, G."The Anatomy of Envy: A Study in Symbolic Behavior." *Current Anthropology, 13(2)*, 1972, p. 172.

Macdonald's central argument is that the figure of the ṭonahi functions as a "summarising symbol" through which people explain misfortune, illness, and conflict. Witch-hunting is not random but emerges through long processes of suspicion, gossip, and social tension, often culminating in public accusation and violence. She also highlights the gendered nature of these accusations, with most victims being socially vulnerable women. The police, courts, NGOs, and media do not simply eliminate witch-hunting but become part of its afterlife, shaping narratives, legal outcomes, and public discourse.

While Macdonald's work is detailed and insightful, it does not fully discuss the legal side. She talks about how police and courts deal with cases, but she does not clearly explain why the law was needed, what debates were there during its passing, and how the state understood witch-hunting as a problem . This is an important gap because to fully understand witch-hunting in Chhattisgarh, we also need to look at how and why the state decided to intervene legally. In this seminar, I have tried to fill this gap by adding a discussion on the need for the law, the debates around it, and its significance to more fully understand how witch-hunting is constructed, addressed, and experienced in contemporary Chhattisgarh.

Carving out a legal space

As these practices of superstition disproportionately targeted women, they also revealed the limited agency available to them to defend themselves. In such a context, legal intervention appears significant. However, an important question remains: does the legal system really provide justice to women accused of witchcraft, especially when laws and punishments are seen as the main solution to witch-hunting?

This question can be understood through what Radhika Coomaraswamy describes as the rise of "law and order feminism,"[4] particularly from the 1980s and 1990s onward. A range of laws, addressing dowry, domestic violence, sexual harassment, and other forms of harm, reflect this broader trend. While these legal interventions mark important progress, they also suggest a reliance on punishment as the primary means of addressing deeply rooted social problems.

The movement toward legal reform in Chhattisgarh reflects this broader pattern. It was shaped by a series of events, advocacy efforts, and public pressure. Incidents reported from villages like Lachkera became turning points that compelled the state to act. At the same time, activists, NGOs, and institutions played a crucial role in pushing the issue into the public and legal domain. The President of the National Commission for Women, during a visit to the state to launch the report *A Situational Analysis of Women and Girls in Chhattisgarh*, emphasised the urgent need for legislation.[5] Similarly, advocates associated with the Raipur-based Forum for Fact-finding Documentation and Advocacy filed a Public Interest Litigation in the High Court demanding legal measures against witch-hunting.[6] These developments indicate that the law did not emerge in isolation but through sustained pressure from multiple actors. Yet, as political and administrative attention shifts elsewhere and media interest fades, the public significance of witchcraft accusations also diminishes. This raises a further question: does the creation of a legal framework lead to any lasting improvement in the lives of the women it seeks to protect?

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[4] Coomaraswamy, Radhika. Human Security and Gender Violence. *Economic and Political Weekly*, 40 (44), 2005, p. 4730.

[5]"Two Women from Siliyaribhata Declared Ṭonahi Are Missing. Three Baigā bind the village by performing Nude Dance." *Deśbandhu*, 24 July 2004.

[6] cited by Macdonald, *Hari Bhūmi* 23 July 2005; *Dainik Bhāskar,* 28 and 29 July 2004.

By early 2004, the state government had begun to respond more formally. In August, Chhattisgarh's First Lady, Veena Seth, addressed the State Social Welfare Board and urged the public to "come forward and boycott those who promote social evils such as witchcraft practices."[7] A month later, government announced that it would examine the Jharkhand Act as a basis for introducing new legislation.[8] Around the same time, newspapers intensified public debate. For instance, *Lokmat Samācar*, marking International Women's Day (9 March 2005), reported that "innocent women labelled as ṭonahi are paraded naked while their offenders roam freely with their heads held high," thereby exposing the hollowness of Dr. Raman Singh's announcement.[9]

The then Chief Minister Raman Singh directed the Women and Child Development Department to prepare a draft bill addressing witch-hunting for consideration in the state assembly.[10] A committee (comprised of a majority of men) was formed to review findings and make recommendations.[11] Public discourse around the issue intensified in the following months. Newspapers highlighted the brutality of witch hunting, often using vivid language to draw attention to the humiliation faced by accused women. At the same time, suggestions were made to strengthen the proposed law by including stricter punishments, limiting bail provisions, and ensuring compensation for victims. Dr. Dinesh mishra, for instance, argued that the bill required stronger penalties, provisions for rehabilitation, and mechanisms such as special courts for speedy trials, along with compensation for victims funded through fines imposed on perpetrators. Media coverage further amplified these demands, contributing to the growing intensity of the debate.

Amid this heightened public and media attention, questions also emerged regarding the adequacy of existing legal frameworks to address witch-hunting. Notably, Chhattisgarh was not the first state to introduce such legislation. Earlier laws in Bihar (1999)[12] and Jharkhand (2001)[13] had already sought to address witch-hunting through legal means. Prior to 2005, however, there was no specific law in Chhattisgarh dealing with witchcraft accusations. In the absence of such legislation, police relied on general provisions of the Indian Penal Code (IPC) and the Code of Criminal Procedure (CrPC). In many cases, the act of calling someone a "tonahi" was interpreted as obscenity and prosecuted under Section 294 of the IPC, which deals with obscene acts or words in public spaces. This provision, however, carried relatively minor penalties and did not adequately capture the seriousness of witch-hunting as a form of violence.[14]

The introduction of the Chhattisgarh Witch Atrocities Prevention Act, 2005 (Chhattisgarh Tonahi Pratadna Nivaran Adhiniyam), marked a shift by explicitly criminalising the act of "witch identification," thereby recognising that accusation itself can lead to escalation into humiliation and physical violence. However,

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[7] "Educated and civilised society has no room for witchcraft: Veena Seth." *Deśbandhu*, 1 August 2004.

[8] *Deśbandhu*, 4 September 2004.

[9] "Chhattisgarh leads in *tonahi* atrocity cases" *Lokmat Samācar*, 9 March 2005.

[10] Law to put brake on *ṭonahi* tradition: Review meeting of women and child development department', *Amrit Sandes*, 10 January 2004.

[11] Assembly committee to monitor t*onahi* cases and to look into child marriage cases and status', *Hari Bhūmi,* 28 April 2004.

[12] Prevention of Witch-hunting (*Daain*) Practices Act 1999, (State Government of Bihar 1999).

[13] Prevention of Witch-hunting (*Daain*) Practices Act 2001, Jharkhand, inherited on bifurcation (State Government of Jharkhand 2001).

[14] Mehra, Madhu, and Anuja Agrawal. "'Witch-Hunting' in India: Do We Need Special Laws?" *Economic and Political Weekly*, vol. 51, no. 13, 26 Mar. 2016, p. 55.

evidence suggests that even after this legal shift, implementation remained uneven. Studies show that police often continued to rely on older IPC provisions rather than invoking the stricter sections of the Act. As noted by the Partners for Law in Development (2014), it is difficult to explain why Section 294 IPC continued to be used so frequently,[15] despite the availability of more appropriate and stringent legal provisions under Sections 4 and 5 of the Act. This raises important questions about the gap between legal intent and actual practice.

One possible explanation lies in the limited scope of the Chhattisgarh Tonahi Pratadna Nivaran Adhiniyam, 2005 itself. The Act primarily criminalises the act of "witch identification" and subsequent harassment. This means that unless the accusation is explicit, or accompanied by clear forms of intimidation or violence, it becomes difficult to invoke its provisions. In practice, however, accusations are often indirect, embedded in everyday language, or expressed through insinuation rather than formal declaration. Under such circumstances, the police may find it easier to categorise the incident under Section 294 of the Indian Penal Code as "obscenity," rather than establish it as a case of witch-branding. Compared to the provisions of the 2005 Act, which are non-bailable and carry stricter punishments, Section 294 is relatively minor, bailable, and administratively easier to process. Thus, the choice of legal provision is not only a matter of evidence but also of practicality within the functioning of the legal system.

In this context, the effectiveness of legal intervention remains uncertain. As Coomaraswamy cautions, harsher laws do not automatically translate into justice, particularly when social attitudes remain unchanged.[16] The persistence of witch-hunting despite legal prohibition suggests that while the law creates a framework for action, it does not fully transform the conditions that produce such violence. Thus, the process of carving out a legal space for addressing witch-hunting reveals both the possibilities and the limits of law. While the state's intervention represents an important acknowledgement of the problem, it also reveals a continued dependence on punitive legal measures that do not fully address the underlying social dynamics such as gender inequality, local power relations, and community belief systems, that sustain these practices. It is this gap between legal reform and lived social realities that continues to shape the persistence of witch-hunting in contemporary Chhattisgarh.

Legislative Debates: Framing the Problem

Chhattisgarh's Woman and Child Welfare Minister, Lata Usendi, introduced the bill in the State Assembly on 19 July 2005 where it was discussed in an 'intense debate' and passed 'amidst echoed consensus.'[17] While this moment is often treated as a straightforward legislative response to the problem of witch-hunting, a closer reading of the debates suggests something far more complex. Rather than merely formalising a law, the Assembly became a site where the meaning of witch-hunting itself, its causes, its consequences, and its solutions, was actively negotiated. The debates surrounding the passage of the Chhattisgarh Tonahi Pratadna Nivaran Adhiniyam, 2005 form one of the most revealing parts of this study. Instead of treating them as a procedural step in law-making, I read them as a space where the problem itself was being framed and contested. What emerges from these discussions is not a unified recognition of violence, but a series of competing interpretations, hesitations, and, at times, it actually tells you a lot about how the problem is being displaced rather than addressed.

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[15] Ibid., p. 55.

[16] Coomaraswamy, Human Security and Gender Violence, p. 4736.

[17] Macdonald, 'Witchcraft Accusations', p. 283.

A key feature of the debates was the nature of opposition raised by several members, particularly from the Congress party. The objections put forward by Dr. Haridas Bharadwaj reveal a particular way of understanding both law and violence. His primary concern was that the Act could be misused and that merely calling someone a "tonahi" could lead to imprisonment of up to three years, frames the issue as one of excessive criminalisation.[18] However, this argument rests on a fundamental misreading of the nature of witch-hunting. In the debates, the act of calling someone a "tonahi" is treated as if it were a simple verbal offence. Yet, in practice, such accusations are rarely limited to speech. They mark the beginning of a process that often escalates into public humiliation, social boycott, physical violence, and, in extreme cases, murder. To separate the label from its consequences is therefore to misunderstand the nature of the violence itself. In this sense, Bharadwaj's argument reduces a socially embedded act of accusation into an individual act of speech, thereby underestimating its impact on women's lives.

His second concern was that making the offences non-bailable would lead to harm for the "innocent," further shifts the focus of the debate. The emphasis here is not on the vulnerability of women who are accused, but on the potential inconvenience faced by those accused under the law. This produces a reversal of priorities: the law, which is intended to protect victims of violence, is instead evaluated in terms of the risks it poses to alleged offenders. While concerns about misuse are not entirely unfounded, their repeated emphasis in the debate creates an impression that false accusations under the law are a greater threat than the ongoing reality of witch-hunting itself.

Bharadwaj's argument that existing laws were already sufficient also reveals a gap between legal provision and lived reality. He points to earlier instances of violence, such as the case of a woman being killed in Rajasthan, to suggest that the failure lies not in the absence of law but in its implementation. However, this reasoning overlooks a crucial issue: prior to the Chhattisgarh Tonahi Pratadna Nivaran Adhiniyam, 2005, there was no specific legal recognition of witch-branding as a distinct offence. Cases had to be fitted into general provisions of the Indian Penal Code, which addressed outcomes like assault or murder, but not the process of accusation itself. As a result, the law intervened only after violence had already escalated, rather than at the stage where it could potentially be prevented. By targeting the act of accusation, the law acknowledges that violence does not begin with physical harm, but with the social act of naming and isolating an individual. Bharadwaj's dismissal of this provision therefore reflects a narrower understanding of violence, one that recognises only its most visible forms, while ignoring the processes through which it develops.

This tendency to displace the problem becomes even more evident in another line of opposition: the claim that the bill was a "cheap way to gain popularity" by the ruling party. At one level, this reflects the expected dynamics of party politics. However, in the context of the extreme violence associated with witch-hunting, such an argument shifts attention away from the issue itself. Instead of engaging with the urgency of the problem, the debate is redirected toward questioning political intent. The suffering of women becomes secondary, and the law is evaluated not on its necessity, but on its possible political advantage. In doing so, the discussion moves away from the lived realities of victims and becomes entangled in political suspicion.

A similar displacement is visible in the intervention made by Nandkumar Patel, although it takes a different direction. His argument shifts the focus from political intent to questions of naming, legality, and regional identity. His primary argument rests on two claims: first, that calling someone a "tonahi" is already punishable under existing provisions of the IPC and CrPC, and second, that naming the Act after "tonahi" would stigmatise Chhattisgarh as a region associated with witchcraft. At one level, the suggestion to rename the Act as a more general "Women Atrocities Act" appears reasonable, as it seeks to place witch-hunting within a broader framework of violence against women. However, this move also dilutes the specificity of

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[18] *Chhattisgarh Tonahi Pratadna Nivaran Vidheyak, 2005*, Legislative Assembly Debates, Chhattisgarh Legislative Assembly, 19 July 2005, p. 101.

the problem. Witch-hunting is not simply one among many forms of violence; it operates through a distinct process of accusation, social sanction, and collective participation. By subsuming it under a general category, the argument risks erasing the very mechanisms that make this form of violence particularly severe and difficult to address.

More significantly, Patel's concern with the "reputation" of Chhattisgarh reveals a displacement of priorities.[19] The fear that the term "tonahi" would create a blot on the state's image suggests that the visibility of the problem is more troubling than the problem itself. In this framing, the issue is not that witch-hunting exists and produces violence, but that acknowledging it openly might damage the state's identity. Such a position shifts attention from the lived experiences of victims to the symbolic management of regional image.

If Patel's argument reflects an anxiety about reputation, Kavasi Lakhma's intervention introduces a more layered concern by framing the Act as a "Black Law" imposed on Adivasi communities.[20] By suggesting that regions such as Abujhmad and Dantewada would bear the consequences, his argument reflects a deeper anxiety about the history of legal intervention in tribal areas. Laws introduced in the name of reform have often been experienced as instruments of control, disproportionately affecting these communities. However, the way this argument is framed also reveals certain limitations. By presenting the Act as something imposed "against tribals," the discussion risks treating Adivasi communities as a homogeneous cultural unit, rather than as socially differentiated spaces where power, gender, and vulnerability operate internally. Witch-hunting, as evidence suggests, disproportionately targets women within these communities, particularly those who are already marginalised due to age, widowhood, or lack of social support. To oppose the law on the grounds that it targets "tribals" as a whole is therefore to obscure the internal hierarchies through which such violence is enacted.

Against this series of displacements toward misuse, political intent, and community anxiety, the intervention by Rosalin Beckmen marks a decisive shift in the debate. By calling the Act a "historic" step, she frames it not merely as a legal measure, but as a necessary response to a long history of violence that has denied women even the most basic sense of dignity. What is particularly striking in her intervention is the way she directly confronts the opposition. Her remark:

> *"I* believe that some members of the opposition are unwilling to see women live with dignity, and it is for this reason that they are speaking against the bill."[21]

Her remark that certain members seem unwilling to see women live with dignity directly confronts the underlying gendered bias shaping the debate. While many opposition arguments focused on the risks to those who might be accused under the law, Beckmen insists that the central concern must be the condition of women who are already victims of violence. The Chief Minister's observation that the opposition lacked women representatives further reinforces this point, highlighting how the composition of the Assembly itself shapes the nature of the debate. The repeated emphasis by male members on misuse, severity, and reputation can thus be read as emerging from a certain distance from the lived realities of witch-hunting.

At the same time, her intervention also opens up a more complex question about representation. This tension can be understood through a reworking of Gayatri Chakravorty Spivak's well-known formulation of "white men saving brown women from brown men." In this context, the dynamic appears to take the form of "brown women saving brown women from brown men." Here, it is not an external saviour figure, but women within the political structure, such as Beckmen and Lata Usendi, who are speaking on behalf of other

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[19] Ibid., p. 103.

[20] Ibid., p. 108.

[21] Ibid., p. 110.

women. Yet, this too is not without tension. Those who speak- activists, policymakers, and institutional representatives, often occupy positions of relative privilege, while the women who experience witch-hunting remain largely absent from these spaces. Their stories are mediated, narrated, and displayed, but rarely articulated in their own voices. On the surface, this seems like a corrective that women speaking for women, from within the same social context. However, as feminist critiques have pointed out, this form of representation can also produce its own hierarchies.

It is precisely at this point, when the debate begins to center women's dignity, that it is once again pulled back by familiar concerns about misuse. Tamradhwaj Sahu's response extends this logic:

> "Honourable Member, the opposition has no objection. However, since you spoke about the dignity of women, it is important to note that in cases related to dowry, it is often claimed that out of ten cases, nine are false and only one is genuine. This raises serious concerns about the extent to which such laws are being misused, and it is equally important to consider the potential for misuse of this law as well."[22]

By drawing on dowry laws to argue that most cases are false, this position extends suspicion toward women themselves. By generalising across different forms of gendered violence, it dilutes the specificity of witch-hunting and constructs women not as victims, but as potential misusers of the law. Beckmen's response is both strategic and revealing. By refusing to engage immediately with the dowry comparison and insisting that "right now we need to speak about the witch-hunting bill," she recentres the discussion. Her intervention highlights how easily debates on women's rights can be diverted by such comparisons. Her rejection of illiteracy as the root cause further complicates another dominant narrative, suggesting that witch-hunting cannot be reduced to ignorance alone but must be understood within deeper social structures.

In contrast to these diversionary arguments, the suggestions put forward by Bhupesh Baghel represent a more calibrated engagement with the law.[23] His proposal to replace the term "Ojha" with "Baiga" reflects an awareness of local context, emphasising that legal language must resonate with lived realities. He draws attention to the fact that the effectiveness of law depends not only on its provisions, but also on how well it resonates with the social context in which it is applied. However, his second proposal to reduce the punishment for "witch identification" from three years to six months, reveals a more complex tension. He justifies this by arguing that the law is being introduced in a largely rural and "uneducated" society where awareness is limited, and that harsh punishment at an early stage may lead to unintended consequences. He further suggests that practices like witch-hunting cannot be eliminated immediately, as they are deeply rooted in long-standing traditions. While this reflects a pragmatic concern with implementation, it also raises important questions. By emphasising lack of awareness and gradual change, the argument risks normalising the persistence of violence, even if temporarily. The focus shifts from the harm experienced by victims to the circumstances of those committing the act. Notably, none of these amendments were accepted.

Other members, such as Devlal Dugga, Indar Chopra, and Ramshila Sahu, move the debate in yet another direction by focusing on solutions. Dugga's emphasis on rehabilitation through housing and employment, recognises that legal punishment alone cannot address the long-term consequences faced by accused women. At the same time, the repeated emphasis on education and awareness by other members reflects a tendency to attribute witch-hunting primarily to superstition and ignorance. While these suggestions are important, they also risk oversimplifying the problem by overlooking its connections to gender, power, and social conflict. The proposal to include "tonha" (male sorcerers) within the law similarly gestures toward inclusivity, but may dilute the recognition that women are the primary targets of such violence.

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[22] Ibid., p. 110.

[23] Ibid., pp. 112-113.

Taken together, these debates do not simply reflect differing opinions on a piece of legislation; they reveal the fragmented ways in which witch-hunting is understood: as a legal issue, a social evil, a political tool, and a question of community identity. It is this fragmentation that ultimately shapes both the possibilities and the limits of the law itself.

In conclusion, Lata Usendi moved that the Bill be passed, and the Speaker subsequently declared it adopted. With its publication in the state gazette on 30 September 2005[24], the Act formally came into effect. Yet, the debates that preceded its passage make clear that the law emerged through contestation rather than consensus. While it marked an important step in recognizing witch-hunting as a form of gendered violence, the persistent concerns about misuse, severity, and political intent reveal an underlying hesitation to fully confront the issue. As has been observed, judges and juries often hesitate to convict people under laws they see as too harsh, which shows that laws alone can't fully change outcomes in practice.The Act thus carves out a necessary legal space, but its effectiveness remains shaped by the very social attitudes it seeks to transform. In this sense, the legislative moment marks not a resolution, but the beginning of an ongoing tension between legal reform and social reality.

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After the Law: Questioning Justice in Practice

If the earlier section shows how the law was imagined, developments after 2005 make it clear how unevenly that imagination translates into reality. By the end of 2014, the focus had already begun to shift from the *need* for law to its effectiveness. Reports in *The Times of India* raised precisely this question of (in)justice in Chhattisgarh, pointing out that hundreds of incidents of witch-hunting continue to go unreported, particularly in remote villages. Even among cases that do enter the legal system, the conviction rate stood at around 40%, with a significant number still pending at different stages of trial. This immediately complicates the assumption that the existence of a strong legal framework ensures justice. While the Act appears robust on paper, its actual reach remains partial, uneven, and mediated by access, awareness, and institutional capacity.

This gap becomes even more visible when we consider the role of non-state actors in sustaining the process of justice. The intervention of Dr. Dinesh Mishra of the Andh Shraddha Nirmulan Samiti, who to provided legal aid, financial assistance, rehabilitation, medical support, and employment to survivors. He suggests that the law by itself is not sufficient to address the consequences of witch-hunting. His subsequent Right-To-Information petition to the Chief Minister further exposes this limitation: despite the presence of the Act, survivors continue to struggle within the system for years. Out of 1,268 recorded cases, women in 332 cases

[24] The Chhattisgarh Tonahi Pratadna Nivaran Adhiniyam, 2005 (No. 17 of 2005). Chhattisgarh Rajpatra, no. 250, Raipur, 30 Sept. 2005, pp. 499-500(3).

were still living in conditions of separation and hardship, without receiving any compensation.[25] What this reveals is that while the law may formally recognise violence, it does not necessarily resolve its aftermath. The burden of navigating justice continues to fall disproportionately on the survivors themselves, often requiring additional networks of support beyond the state.

At the level of the judicial process, more problems appear that make it difficult to clearly judge whether justice is actually being delivered. Less serious cases usually remain in the courts of Judicial Magistrates, while more serious ones are moved to district courts and then to the High Court. However, the lack of accessible and systematic data from lower courts makes it difficult to assess how justice is delivered at the ground level As a result, most available evaluations rely on High Court appeals, which represent only a limited segment of cases. This creates an incomplete understanding, where patterns of delay, acquittal, or conviction are only partially visible. A comparative perspective deepens this complexity. In Jharkhand, for example, more than half of the convictions reviewed by higher courts have been overturned, and only a small number of accused persons are actually convicted. In comparison, Chhattisgarh seems to perform better, with more convictions being upheld and fewer acquittals. However, this does not necessarily mean that the system is effective. Even when convictions are upheld, the legal process remains long, difficult, and often hard for survivors to access.

The claim, frequently made by activists, that "tortured women have to fight for years" therefore requires more careful reading. On one hand, statistical data indicates that the introduction of the 2005 Act has significantly reduced the time taken from the occurrence of crime to sentencing, with the duration decreasing by more than half.[26] Similar reductions are visible in the time taken for appeals and final judgments, suggesting that the law has had a measurable impact on procedural efficiency. Even reduced timelines still involve long and exhausting legal battles, often conducted without adequate institutional or financial support. Earlier cases, some stretching across decades, illustrate how deeply entrenched delays are within the judicial system, and how difficult it is for legal reform to completely overcome them. The persistence of lengthy trials, appeals, and procedural complexities ensures that justice remains a slow and uncertain process.

Taken together, these developments reveal a fundamental tension at the heart of legal intervention. On one level, the Chhattisgarh Witchcraft Atrocities Prevention Act, 2005 has undeniably improved certain aspects of the justice system: it has formalised the recognition of witch-hunting as a distinct offence, reduced procedural delays, and created a framework through which cases can be pursued. On another level, however, it has not transformed the lived reality of survivors, many of whom continue to face stigma, exclusion, economic hardship, and prolonged engagement with the legal system. In this sense, the post-2005 scenario does not present a simple narrative of success or failure. Instead, it highlights the limits of legal reform itself. The law has made witch-hunting visible and actionable within a legal framework, but it has not fully addressed the deeper social conditions that sustain such violence. What emerges, therefore, is a complex picture in which legal intervention opens up possibilities for justice, while simultaneously exposing the boundaries of what law alone can achieve.

Newspaper Headlines and Media Representation

A very different perspective emerges from historical case studies, such as the story of Bridget Cleary. Her death in nineteenth-century Ireland is often described as one of the last witchcraft-related killings in Europe. What makes this case particularly striking is that it occurred within a society already considered "modern." Her husband and relatives believed that she had been replaced by a fairy and killed her in an attempt to

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[25] Cited by Macdonald, 'Witchcraft Accusations', p. 192. 'Witch-hunt: 332 women await justice for a decade in Chhattisgarh', *The Times of India*, 1 October 2015. Available online: https://timesofndia.indiatimes.com / city/raipur/Witch-hunt-332-women-await-justice-for-a-decade-in-Chhattisgarh/ articleshow/49178573.cms

[26] Macdonald, 'Witchcraft Accusations', p. 240.

"bring her back." The case reminds us that belief in witchcraft does not simply disappear with progress; it can coexist with modern institutions and legal systems. At the same time, such case studies are often treated in isolation. They are rarely connected to broader structural patterns. This is a tendency we also observe in contemporary India. Newspaper reports from Chhattisgarh frequently describe horrific incidents: women beaten, stripped naked, and even killed brutally after being branded as witches. However, these reports often present such events as sudden, isolated acts of violence rather than as part of a recurring social pattern. It is within this gap that my study intervenes. Instead of treating each case as exceptional, I read them collectively, asking what patterns persist and what remains constant over time.

Newspaper reporting on *tonahi* accusations in Chhattisgarh reveals a complex relationship between media narratives, readers, and the lived realities of accused women. Newspapers do not just report what happens; they also shape how people understand these incidents, often reflecting larger political, legal, and social ideas A key problem in this coverage is that women's experiences are often simplified, distorted, or turned into sensational stories. Over time, numerical data such as the number of cases or deaths has come to stand in for "facts," while the voices and subjectivities of the women themselves gradually disappear from the narrative. What remains is not a detailed or sensitive account of their suffering, but a more impersonal and distant picture of violence.

A close reading of specific cases illustrates how media narratives are constructed. For instance, a report titled *"Two Women Harassed in Witch Accusation"* from Baloda Bazaar (2000)[27] presents a detailed yet fragmented account of how suspicion, illness, and local healing practices culminated in violence against two women. The narrative begins with a man's unexplained illness, moves through consultations with *baigās* and practitioners of *jhāṛphūnk*, and ultimately results in the identification of two women as *ṭonahi*. Under intense communal pressure, including physical torture with heated iron rods, the women confessed and were forced to perform rituals to "bring back" the missing man. While the report provides descriptive detail, it simultaneously reproduces the logic of accusation by centering the sequence of supernatural suspicion rather than critically interrogating the violence inflicted. The women appear only as passive figures within a chain of events, their suffering acknowledged but not deeply examined.

The 2001 Lachkera case further demonstrates how media attention can both expose and reshape narratives of violence. Widely reported across Hindi and English newspapers, the case described the brutal humiliation of Teertha Bai and two other women, who were stripped, beaten, forced to consume urine, and subjected to electric shocks under the accusation of witchcraft. Initial reports focused on the spectacle of violence and the swift police response, but subsequent investigative journalism revealed deeper layers of coercion, social tensions, and political motivations behind the accusations. Media coverage expanded to include voices of activists, state officials, and sociologists, transforming the case into a broader public issue. It led to demands for legal reform, administrative accountability, and even contributed to the discourse that eventually shaped the Chhattisgarh Witchcraft Atrocities Prevention Act, 2005. However, this visibility was uneven and temporary. Despite intense coverage immediately following the incident, the long-term realities of the victims received far less sustained attention. Over time, the Lachkera case itself was reconfigured in public memory as a symbolic "turning point" that justified legislative intervention, even though the actual connection between the case and legal outcomes remained limited. This demonstrates how media narratives do not merely report events but actively reconstruct them, assigning retrospective significance that aligns with state and reformist agendas.

A broader pattern in newspaper discourse is the framing of witch-hunting within a binary of "modern" versus "traditional." Influenced by post-independence ideals of development and progress, newspapers often portray *ṭonahi* accusations as remnants of a backward, pre-modern mindset that stands in opposition to science, rationality, and national advancement. Statements such as "our society calls itself modern, yet superstition

[27] Deśbandhu, August 2000.

persists" or descriptions of such incidents as "shameful in the 21st century" reinforce a linear narrative of progress in which superstition is positioned as an obstacle to modernity. This framing not only simplifies complex social realities but also creates a moral distance between the reader, who were imagined as modern and rational and the subjects of the report, who are cast as irrational or regressive. This discourse is further reinforced by generational distinctions, where younger, urban voices are presented as rejecting superstition, while older or rural populations are depicted as clinging to outdated beliefs. Such representations obscure internal diversities and contradictions within communities, reducing them to simplistic categories. At the same time, they align with broader state narratives of development, where practices like witch-hunting become symbols of underdevelopment that must be eradicated through law, education, and modernisation.

The structure of the media industry itself also shapes these representations. Hindi-language vernacular newspapers dominate the media landscape in Chhattisgarh and are often the primary sources reporting on *ṭonahi* cases. These newspapers are "close to the people," using accessible language and focusing on local events, which allows them to capture incidents that might otherwise go unnoticed. In contrast, English-language newspapers tend to report such cases selectively, usually when they involve extreme violence, legal intervention, or administrative action. As a result, everyday forms of violence and social tension remain underreported in elite media spaces, reinforcing a hierarchy of visibility.

Despite the apparent abundance of reporting, women's perspectives remain marginal. Media coverage tends to prioritise event-based reporting focusing on discrete incidents of violence rather than process-oriented analysis that would explore underlying social dynamics such as caste, gender relations, or economic conflict. Studies have shown that only a small fraction of news coverage is devoted to rural issues, and within that, women's experiences constitute an even smaller proportion. Furthermore, the male dominance within journalism and editorial structures often means that the "women's angle" is filtered through male perspectives, limiting the depth and sensitivity of reporting.

Finally, the passage of the Chhattisgarh Witchcraft Atrocities Prevention Act (2005) marked a shift in media discourse. Prior to the law, reporting often evolved from isolated incidents to broader debates, contributing to pressure for legislative action. However, after the law's enactment, coverage initially expressed optimism about its potential impact but soon shifted toward highlighting its limitations. Newspapers began to emphasise the persistence of witch-hunting despite legal measures, often portraying the law as ineffective and attributing failures to inadequate policing or administrative negligence. Over time, repeated reporting of such incidents led to a form of "media fatigue," where the extraordinary became routine, and sustained attention to the issue declined.

NGOs : Irrationality and Social Context

The role of non-governmental organisations in addressing witch-hunting in Chhattisgarh has been shaped largely through the language of superstition and rationality. Organisations such as the Andh Shraddha Nirmulan Samiti (ASNS), led by Dr Dinesh Mishra, approach *ṭonahi* accusations primarily as a problem of *andhavishvas* (blind belief), rather than as a deeply embedded social issue involving gender, caste, and local power structures. In doing so, they reframe witch-hunting as a failure of scientific understanding. Violence against women is thus interpreted not only as a social injustice, but as the outcome of irrational thinking, which must be corrected through the promotion of "scientific temper." This framing aligns closely with broader postcolonial and state-driven narratives of modernity, where rationality becomes a marker of responsible citizenship.

At the same time, these organisations function through what has been described as "secular social work." Their interventions extend beyond awareness to include active engagement within communities by organising campaigns, conducting workshops, supporting survivors, and even assisting with legal processes. A distinctive feature of their work lies in the use of public demonstrations to "expose" so-called miracles. By replicating acts such as producing ash, creating fire, or making substances appear like blood through simple

chemical reactions, rationalists attempt to demystify the authority of local healers like baigās and tāntriks. However, this strategy also reveals a tension: while aiming to dismantle belief, these demonstrations themselves rely on performance and spectacle, suggesting that the contest is not simply between truth and falsehood, but between competing ways of producing and validating knowledge.

Nevertheless, the work of organisations like ASNS has introduced important shifts in the public discourse. By linking witch-hunting to legal consequences under the Chhattisgarh Witchcraft Atrocities Prevention Act (2005), they have contributed to redefining such practices as criminal acts rather than socially sanctioned responses. Their emphasis on care, gradual engagement, and building trust, particularly in the case of Dr Mishra's approach, has allowed them to operate without the level of backlash seen in other regions. Yet, their efforts also exist within a broader contradiction: while they advocate rationality and scientific thinking, public life in India continues to accommodate and even endorse various forms of "unscientific" belief, including among political and social elites.

In this context, NGOs occupy a complex position. They are not merely rescuers of victims, but active participants in reshaping how witch-hunting is understood and addressed. Their interventions highlight the importance of awareness and legal reform, but also reveal the limits of approaches that prioritise belief over structure. Ultimately, while rationalist organisations have played a significant role in challenging witch-hunting, their work underscores the need to engage more deeply with the social, economic, and gendered dimensions that sustain such practices.

Conclusion

This seminar has tried to show that witch-hunting in Chhattisgarh cannot be understood in a simple or one-dimensional way. It is not just about superstition, nor only about lack of education. Instead, it lies at the intersection of gender, power, social tensions, and belief. The law, the media, and NGOs all attempt to address the problem, but each of them frames it differently. The law treats it as a criminal issue, the media often presents it as shocking incidents, and NGOs largely approach it as a problem of irrational belief. While all these efforts are important, none of them fully capture the deeper social realities that produce witch-hunting.

At the same time, the persistence of witch-hunting after the 2005 Act reminds us that legal reform alone cannot bring complete change. The gap between law and practice, the delays in justice, and the continued stigma faced by women show that the problem is far from resolved. Similarly, media representations and NGO interventions, while helpful in creating awareness, sometimes simplify the issue by reducing it to superstition, overlooking the role of inequality, conflict, and gendered violence. Witch-hunting is not something limited to the past or to one region. It is a global problem in the 21st century, and it continues to be a harsh reality for many women across different countries. This forces us to rethink how we understand such violence. It is not enough to label it as backward or irrational; we must ask why it continues, who it targets, and what structures allow it to survive.

This brings us to a deeper and more uncomfortable question: why were we taught to fear the witches and not those who burned them alive? When we look closely, it becomes clear that witch-hunting has rarely been about "witches" in any real sense. It has been about controlling, punishing, and silencing women who are seen as vulnerable, different, or inconvenient.

In this sense, it was never really witches who were burned—it was women.

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